



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/25/2026 - 09:00 AM

08/10/2026

4:51 PM

Page 1

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

August 25, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 08/25/2026 - 09:00 AM**

08/10/2026

4:51 PM

Page 2

Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

18-PRO-00864	Conservatorship of Theodore Anthony Russo	Continued on 06/18/2026 Continued on 06/18/2026
Line 1, 2	Proposed Conservatee: Russo, Theodore Anthony (FRIEDMAN, SHERRIE S.) Proposed Conservatee: RUSSO, THEODORE ANTHONY Petitioner: Galloway, Dana T. (KEYES, ELIJAH M) Petitioner: Russo, Theodore J. (KEYES, ELIJAH M) Proposed Conservator: Galloway, Dana T. (KEYES, ELIJAH M) Proposed Conservator: Gaytan, Carlos Proposed Conservator: Hayden, Rosanna Proposed Conservator: RUSSO, THEODORE Proposed Conservator: Russo, Theodore J. (KEYES, ELIJAH M) Conservatee: Russo, Theodore Anthony (FRIEDMAN, SHERRIE S.) Conservator: Gaytan, Carlos Conservator: Hayden, Rosanna Conservator: Russo, Theodore J. (KEYES, ELIJAH M) Father: Russo, Theodore J. (KEYES, ELIJAH M) Mother: Galloway, Dana T. (KEYES, ELIJAH M)	Conservatorship Review - Biennial Conservatorship Review Accounting - Biennial
Tentative Ruling: NO APPEARANCE OFF CALENDAR, purpose of hearing satisfied.		
19-PRO-00071	Conservatorship of SAMUEL M. SHENKMAN	
Line 3	Proposed Conservatee: SHENKMAN, SAMUEL M. Petitioner: SHENKMAN, JULIE (DUGONI, LAURENCE P.) Petitioner: SHENKMAN, PAUL (DUGONI, LAURENCE P.) Proposed Conservator: COSTELLO, TYLER JAY Proposed Conservator: SHENKMAN, JULIE (DUGONI, LAURENCE P.) Proposed Conservator: SHENKMAN, PAUL (DUGONI, LAURENCE P.) Conservatee: SHENKMAN, SAMUEL M. Conservator: COATELLO, TYLER J. (Pro Se) Conservator: SHENKMAN, JULIE (DUGONI, LAURENCE P.) Conservator: SHENKMAN, PAUL (DUGONI, LAURENCE P.) Father: SHENKMAN, PAUL (DUGONI, LAURENCE P.) Mother: SHENKMAN, JULIE (DUGONI, LAURENCE P.)	Conservatorship Review - Biennial



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/25/2026 - 09:00 AM

08/10/2026

4:51 PM

Page 3

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE ORDERED

Order to show cause is issued to Co-conservator Tyler Costello for why he should not be sanctioned and/or removed for failure to file a Confidential Status Report (or sign the amended report to be filed by Julie Shenkman) and a proof of completion. Hearing on the order to show cause is set on January 20, 2027 at 9:00 am.

23-PRO-00408	IN RE: ROBERT L. PACHECO REVOCABLE TRUST DATED MAY 8, 2018 ROBERT L. PACHECO, DECEASED.	Re: Status of Settlement
Line 4	Petitioner: PACHECO, FRANCES T. (JEN, ROXANNE T. SANCHEZ, ERNESTO) Respondent: PACHECO, ANNAMARIE (MELBOSTAD, PAUL H. VILTMAN, VLADISLAV P.) Decedent: PACHECO, ROBERT L.	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Having reviewed the status reports, the court anticipates being informed at the hearing that settlement has been reached. The Court will always endorse the cooperation amongst litigants to resolve disputes. However, with the amended petition filed 3 years ago, and a second petition filed 2/13/2024, if there is not a settlement at this time, the court will move forward with setting timelines. Any Objection to the Amended Petition for Determination of Validity of Purported Trust filed on 9/1/2023 is ordered to be filed within fifteen (15) days, and the parties should be prepared to discuss trial setting.

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 08/25/2026 - 09:00 AM**

08/10/2026

4:51 PM

Page 4

Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

23-PRO-00659	IN RE THE FUNG FAMILY REVOCABLE TRUST	Continued on 06/18/2026
Line 5	Petitioner: Fung, Gregory Decedent: FUNG, DANIEL SILAS Decedent: FUNG, FRANCES MOY Beneficiary: Chin, Heather (Pro Se) Beneficiary: Fung, Daniel, JR (WILKINS, PAUL A. GREENSIDES, IAN R) Beneficiary: Fung-Smith, Andersen (WILKINS, PAUL A. GREENSIDES, IAN R) Beneficiary: Fung-Smith, Nathaniel (WILKINS, PAUL A. GREENSIDES, IAN R) Beneficiary: Fung-Smith, Sarah (WILKINS, PAUL A. GREENSIDES, IAN R)	Trial Setting Conference
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Petitions are CONTINUED to <u>November 13, 2026 at 9:00 am</u> for trial setting. Parties are ordered to file status reports ten (10) days before the next hearing.		

26-PRO-00067	IN THE MATTER OF SPECIAL NEEDS TRUST FOR THE BENEFIT OF LISA M. LEWIS, OF THE IRMGRAD RUTH LEWIS REVOCABLE TRUST	PETITION FOR APPOINTMENT OF SUCCESSOR TRUSTEE- Continued from 06/24/26
Line 6	Petitioner: Lewis, Lisa M. (CASHMAN, MICHAEL S.) Decedent: Lewis, Irmgard R.	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Petition for Appointment of Successor Trustee is DENIED for failure to file a supplement addressing why venue in San Mateo County is proper. Petitioner improperly relies on PrC 17200(a)(2), arguing that venue is proper in San Mateo County because the "principal place of business [of the trust] is located in San Mateo county until such time as a successor trustee is appointed." The prior trustee resigned. Pursuant to PrC 17005(b): "If a living trust has no trustee, the proper county for commencement of a proceeding for appointing a trustee is the county where the trust property, or some portion of the trust property, is located. Moreover, petitioner has failed to file a proof of service showing that Judy Moore and John T. Lyman were served, a proposed order and to provide additional information as to why John T. Lyman is qualified to serve as		



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/25/2026 - 09:00 AM

08/10/2026

4:51 PM

Page 5

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

successor trustee. The Court notes that this matter was continued from 6/24/2026 to afford petitioner an opportunity to cure these defects, and nothing has been filed since that time.

26-PRO-00377	Guardianship of Samantha Jazmin Barahona Lopez	
Line 7, 8	Petitioner: Barahona Lopez, Samantha Jazmin (ALVAREZ, MICHELLE) Ward: Barahona Lopez, Samantha Jazmin Proposed Guardian: Aguilar Lopez, Quennndri Fernando Minor: Barahona Lopez, Samantha Jazmin	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings
Tentative Ruling: APPEARANCE ORDERED (Zoom not allowed) The Court intends to GRANT both petitions		

26-PRO-00380	IN RE THE KARAHASHI REVOCABLE TRUST UNDER DECLARATION OF TRUST DATED MARCH 6, 2017	PETITION FOR ORDER CONFIRMING TRUST OWNERSHIP OF PROPERTY
Line 9	Petitioner: Karahashi, Akie (ITO, CHARLOTTE K.) Petitioner: Karahashi, Masayuki (ITO, CHARLOTTE K.)	Petition Hearing



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/25/2026 - 09:00 AM

08/10/2026

4:51 PM

Page 6

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

Tentative Ruling:

APPEARANCE OPTIONAL

Counsel is admonished to use the DE-115, not the DE-120, in all petitions seeking to confirm trust assets. However, the court will waive that defect in this hearing because the proof of service shows that a copy of the petition, which describes the property at hearing, was served along with the notice of hearing. The petition will be GRANTED absent cogent objection.

26-PRO-00384	IN RE 2025 DAVID L. MCDOWELL REVOCABLE TRUST	
Line 10	Petitioner: McDowell, Susan (KERWIN, PATRICK C.) Decedent: McDOWELL, DAVID L	Petition to Confirm Trust Assets (Heggstad)

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Order Confirming Trust Ownership of Property is CONTINUED to January 22, 2027 at 9:00 am for Petitioner to comply with Probate Code 851 and use Judicial Counsel form DE-115.

26-PRO-00409	Conservatorship of Ryan McGuire	
Line 11	Proposed Conservatee: McGuire, Ryan (KARLSTEN, MELISSA R.) Petitioner: San Mateo County Public Guardian (SAN MATEO COUNTY ATTORNEY'S OFFICE) Proposed Conservator: San Mateo County Public Guardian	Appointment of Conservator for Person and Estate

Tentative Ruling:

APPEARANCE ORDERED

Parties to appear to discuss trial dates, as conservatee objects to the petition. The Public Guardian is to advise the court of any intention to amend its petition to seek dementia medication consent authority and to seek secured-perimeter dementia placement authority



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/25/2026 - 09:00 AM

08/10/2026

4:51 PM

Page 7

Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

26-PRO-00410	IN THE MATTER OF STEINER FAMILY TRUST DATED MAY 2, 1985, AS AMENDED	
Line 12	Petitioner: Steiner, Anne G. (SOUSA, PHILIP) Decedent: STEINER, PETER E	Petition to Confirm Trust Assets (Heggstad)
Tentative Ruling: APPEARANCE OPTIONAL Petition for Order Confirming Trust Property is GRANTED absent cogent objection.		

26-PRO-00934	Estate of PATRICIA L. BETLEYOUN	
Line 13	Petitioner: DECARO, MICHAELINE M. (Pro Se) Decedent: BETLEYOUN, PATRICIA L.	Probate of Will and Letters Testamentary Hearing w/ ATA
Tentative Ruling: APPEARANCE OPTIONAL The hearing will be continued for the petitioner to address the following issues: lodge the original will with the court AND file a copy of the will; serve and submit proof of service to all named beneficiaries as well as the trustee of the Deborah Williams Special Needs Trust; provide a declaration setting forth decedent's domicile address at the time of death, and explaining the inconsistency is identifying herself as propose executor but then at 3e(1) indicating she is acting as a "special administrator,"; submit a proposed order; file proof of publication. The next hearing is November 10, 2026 at 9:00 a.m.		

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 08/25/2026 - 09:00 AM**

08/10/2026

4:51 PM

Page 8

Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

PRO120789	CONSERVATORSHIP OF MARLON RIVERA	
Line 14	Conservatee: RIVERA, MARLON HUMBERTO Conservator: RIVERA, GLADIS D. (Pro Se) Father: RIVERA, JOSE HUMBERTO (Pro Se) Sister: RIVERA, YESENIA (Pro Se)	Conservatorship Review - Biennial
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

PRO120980	CONSERVATORSHIP OF JODI REBEKAH MAR	* on 1/30/2026 Hearing Type changed from CRAB to CRB
Line 15, 16	Conservatee: MAR, JODI REBEKAH Conservator: MAR, DANINE (Pro Se) Conservator: MAR, LARRY (Pro Se) Father: MAR, LARRY (Pro Se) Mother: MAR, DANINE (Pro Se)	Conservatorship Review - Biennial Conservatorship Review Accounting Due
Tentative Ruling: NO APPEARANCE The conservatorship shall continue and be reviewed in two (2) years. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.		

Hearings Total: 16